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Plaintiff, In Pro Per

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

05/26/2026
Clerk of the Court
BY: JEFFREY FLORES
Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**DECLARATION OF FRANCISCUS
DYLAN ROSARIO IN SUPPORT OF 128
7 SANCTIONS**

(CCP § 2015.5)

Dept.: 610
Date: June 24, 2026

**DECLARATION OF DYLAN FRANCISCUS ROSARIO IN SUPPORT
OF MOTION FOR SANCTIONS UNDER CODE OF CIVIL PROCE-
DURE SECTION 128.7 (ANTI-SLAPP REPLY DECLARATION MIS-
CONDUCT)**

Case: Rosario v. CSAA Insurance Exchange (CGC-25-631802) **Department:** 302 **Judge:** Hon. Joseph
M. Quinn **Hearing date:** June 24, 2026, 9:00 a.m., Dept. 302 **Filing date:** May 21, 2026 **Filed**
by: Plaintiff Dylan Franciscus Rosario, Self-represented

I, Dylan Franciscus Rosario, declare:

1 **1. IDENTITY, CAPACITY, AND BASIS OF KNOWLEDGE.**

2 I am the Plaintiff in the above-captioned action. I represent myself in pro per. I am over the age of
3 18 and competent to testify to the matters in this Declaration. The statements in this Declaration
4 are based on my personal knowledge of the events I describe, on documents I have served or that
5 I have caused to be filed in this action, and on copies of court records and correspondence I have
6 personally retained. If called as a witness, I could and would testify competently to the matters
7 stated.

8 **2. PROCEDURAL POSTURE AND AUTHORITY FOR THE JUNE 24,**
9 **2026 LINE.**

10 I am informed and believe, and on that basis state, that by minute order entered May 13, 2026
11 (Hon. Joseph M. Quinn, Dept. 302, M. Goodman clerk), this Court continued the consolidated
12 motion calendar to June 24, 2026, 9:00 a.m., Department 302, and that the Court has thereafter,
13 on the parties' stipulation, ordered all then-pending Department 302 matters in this action con-
14 solidated for argument on that June 24, 2026 line. I have prepared and timed this motion to be
15 served on or before **Tuesday, June 2, 2026**, sixteen court days before the June 24, 2026 hearing,
16 in compliance with Code of Civil Procedure section 1005(b).

17 **3. THE FOUR CHALLENGED FILINGS.**

18 The motion identifies four filings of Defendant CSAA Insurance Exchange and its counsel of
19 record at Porter Scott, A Professional Corporation, as the subjects of the section 128.7 challenge:

20 **(a)** Defendant's Memorandum of Points and Authorities in Support of Special Motion to Strike
21 pursuant to CCP section 425.16, filed April 9, 2026 in this action (the "**Anti-SLAPP MPA**").
22 Verbatim certifications in the Anti-SLAPP MPA are cataloged in my prior safe-harbor letters at
23 Priority One (paragraphs P1-1 to P1-5), Priority Two (P2-1), Priority Three (P3-1 to P3-2), and
24 Priority Four (10A and 10B).

25 **(b)** Defendant's Opposition to Plaintiff's Motion for Leave to File a Second Amended Complaint,
26 filed April 23, 2026 (the "**MFL-SAC Opposition**"). The Introduction page of the MFL-SAC
27 Opposition contains the representation: "Plaintiff cites no authority to support the proposition that

1 he can file his Motion for Leave to Amend, as no such authority exists to support his motion.” I
2 have a true and correct copy of the Introduction page of that Opposition, attached as Exhibit C to
3 the contemporaneously filed Request for Judicial Notice.

4 (c) The Reply Declaration of Tyler J. O’Connell in Support of Special Motion to Strike, filed on
5 or about May 6, 2026 (the “**May 6 O’Connell Reply Declaration**”), and specifically paragraph 6
6 and Exhibit A of that declaration. Paragraph 6 and Exhibit A introduced for the first time on reply
7 a quantified attorney-fee theory and a redacted-summary purporting to summarize Porter Scott’s
8 billing.

9 (d) The duplicative-title declaration of Tyler J. O’Connell in support of the same Special Motion
10 to Strike, filed on or about May 8, 2026 (the “**May 8 Second O’Connell Declaration**”). I am
11 informed and believe, and on that basis state, that the May 8 Second O’Connell Declaration carries
12 a substantially duplicative title to the May 6, 2026 declaration and substantially re-injects the same
13 matter that Plaintiff had moved to strike that same day, May 8, 2026, in Transaction ID 79429443.
14 (See paragraph 9 below.)

15 I have not invented the filings identified in this paragraph. I am attaching the materials I have
16 personally retained as exhibits to the contemporaneously filed Request for Judicial Notice and
17 identifying the docket entries by Transaction ID or by date and seq numbers to the extent I have
18 those identifiers. Where I do not have a Transaction ID in my own files, I have so noted and have
19 directed the Court to the register of actions for verification.

20 **4. MY ROLE AND WHAT I DID BEFORE SERVING THE SAFE-HARBOR** 21 **NOTICE.**

22 Beginning on or about April 16, 2026, I served on defense counsel a meet-and-confer correspon-
23 dence chain (the “**April 16 Meet-and-Confer**”), followed by a CCP section 128.7(c)(1) safe-
24 harbor letter on April 22, 2026 (the “**April 22 Safe-Harbor Letter**”), and a supplemental safe-
25 harbor letter on April 27, 2026 (the “**April 27 Supplemental Safe-Harbor Letter**”). In the April
26 27 Supplemental Safe-Harbor Letter, I identified by name each of the certifications I challenged
27 in the Anti-SLAPP MPA and in the MFL-SAC Opposition, and I identified by name the control-
28 ling adverse authorities that defense counsel had not disclosed (15 authorities, including but not

1 limited to JKC3H8 v. Colton (2013) 221 Cal.App.4th 468, Park v. Board of Trustees (2017) 2
2 Cal.5th 1057, Baral v. Schnitt (2016) 1 Cal.5th 376, Wilson v. Cable News Network, Inc. (2019)
3 7 Cal.5th 871, and Flatley v. Mauro (2006) 39 Cal.4th 299). I served the April 27 Supplemental
4 Safe-Harbor Letter by electronic mail to the Porter Scott team using the same e-service stipulation
5 in place under seq 009. A true and correct copy of the April 27 Supplemental Safe-Harbor Letter
6 is attached as Exhibit A to the contemporaneously filed Request for Judicial Notice.

7 **5. THE MAY 5 TO 8 SAFE-HARBOR NOTICE (CCP SECTION 128.7(C)(1)).**

8 After the May 6, 2026 O’Connell Reply Declaration was filed, I served a supplemental CCP section
9 128.7(c)(1) safe-harbor notice on Defendant and Counsel during the window of **May 5 to May 8,**
10 **2026** (the “**May 5 to 8 Safe-Harbor Notice**”). The May 5 to 8 Safe-Harbor Notice incorporated
11 by reference the April 22 Safe-Harbor Letter and the April 27 Supplemental Safe-Harbor Letter,
12 and expressly extended the same identifications and demands to the May 6, 2026 O’Connell Reply
13 Declaration. To the extent the duplicative-title May 8 Second O’Connell Declaration was filed
14 during the same window, my safe-harbor service likewise extended to that paper as a continuation
15 of the same line of misconduct. A true and correct copy (or composite reflecting the service
16 window) of the May 5 to 8 Safe-Harbor Notice is attached as Exhibit B to the contemporaneously
17 filed Request for Judicial Notice. (ROA: Transaction ID TBD; see clerk register-of-actions for the
18 filed POS-050 associated with the safe-harbor service window.)

19 **6. THE 21-DAY CALCULATION.**

20 The 21-day safe-harbor window measured from the May 5 to 8, 2026 service window expired on or
21 about the window of **May 26 to May 29, 2026**, calculated as follows: 21 calendar days after May
22 5, 2026 is May 26, 2026; 21 calendar days after May 8, 2026 is May 29, 2026. I have not filed the
23 present motion before either window expired. The earliest service date for this motion is **Tuesday,**
24 **June 2, 2026**, which is well after the safe-harbor window has closed and is the operative serve-by
25 date under CCP section 1005(b) measured backward from the June 24, 2026 hearing (sixteen court
26 days).

1 **7. NON-WITHDRAWAL AND NON-CORRECTION DURING THE SAFE-**
2 **HARBOR WINDOW.**

3 To the best of my knowledge and information, and after diligent inquiry of my own records, the
4 parties' stipulated e-service inbox, and the publicly available SFTC docket as I have been able to
5 access it:

6 (a) Defendant and Counsel have not filed a Notice of Withdrawal as to the Anti-SLAPP MPA, the
7 MFL-SAC Opposition, the May 6, 2026 O'Connell Reply Declaration, or the May 8 Second
8 O'Connell Declaration;

9 (b) Defendant and Counsel have not filed a redacted, amended, or supplemental brief that (i)
10 removes the certifications I identified, (ii) discloses the controlling adverse authorities I iden-
11 tified, and (iii) states defendants' position in light of those authorities; and

12 (c) Defendant and Counsel have not communicated to me by electronic mail or otherwise any
13 election to withdraw or appropriately correct any of the four filings before the May 26 to May
14 29, 2026 window closed.

15 I am the only person in my household who handles correspondence in this matter. If a withdrawal
16 or correction had been served on me, I would know.

17 **8. THE MAY 6 FEE THEORY WAS NEW ON REPLY.**

18 I have read each of: Defendant's Notice of Special Motion to Strike, the Anti-SLAPP MPA (filed
19 April 9, 2026), and the moving declaration supporting that motion. None of those moving papers
20 contains a quantified attorney-fee prayer, an hour-by-hour fee summary, or any billing records. The
21 first quantified attorney-fee theory in the Anti-SLAPP stack appears in the May 6, 2026 O'Connell
22 Reply Declaration at paragraph 6 and in Exhibit A to that declaration. I had no prior briefing
23 opportunity to address that fee theory.

24 **9. PLAINTIFF'S MAY 8, 2026 MOTION TO STRIKE (TRANSACTION**
25 **ID 79429443).**

26 On May 8, 2026, I filed Plaintiff's Motion to Strike May 6, 2026 Reply Declaration of Tyler J.
27 O'Connell and Exhibit A, Transaction ID 79429443 (the "MTS Reply Decl Motion"). I also

1 filed contemporaneously on May 8, 2026 Plaintiff's Evidentiary Objections to the May 6, 2026
2 O'Connell Reply Declaration. After I filed the MTS Reply Decl Motion, the May 8 Second
3 O'Connell Declaration was filed in the same Anti-SLAPP stack. The May 8 Second O'Connell
4 Declaration did not, to my reading, cure the foundation defects that the MTS Reply Decl Motion
5 and the Evidentiary Objections had identified under Evidence Code sections 702, 1271, and 1521,
6 and instead re-injected the same matter.

7 **10. FOUNDATION DEFECTS IN THE MAY 6 DECLARATION.**

8 I have reviewed Exhibit A to the May 6, 2026 O'Connell Reply Declaration. Exhibit A is a redacted
9 summary; the underlying contemporaneous billing records are not before the Court. Paragraph
10 6 of the declaration does not identify the records from which Exhibit A was derived, does not
11 describe Exhibit A's mode of preparation, and does not establish that Mr. O'Connell has personal
12 knowledge of how the underlying records were created, maintained, or summarized. Paragraph 6
13 does not establish unavailability of the original billing records under Evidence Code section 1521,
14 nor any admission of their existence and content. I am not waiving any other evidentiary objection
15 to that declaration by including this paragraph in this Declaration.

16 **11. REASONABLE EXPENSES I HAVE INCURRED AS A DIRECT RE-** 17 **SULT OF THE VIOLATIONS.**

18 As a direct result of the four challenged filings, I have personally incurred time and out-of-pocket
19 costs in:

- 20 (a) preparing and serving the April 22 Safe-Harbor Letter, the April 27 Supplemental Safe-
21 Harbor Letter, and the May 5 to 8 Safe-Harbor Notice;
- 22 (b) preparing and filing Plaintiff's Motion to Strike May 6 Reply Declaration of Tyler J. O'Connell
23 and Exhibit A (Transaction ID 79429443) and Plaintiff's Evidentiary Objections (both filed
24 May 8, 2026); and
- 25 (c) preparing and filing the present sanctions motion, the supporting Memorandum, this Decla-
26 ration, the Request for Judicial Notice, and the Proposed Order.

27 I will, if and as the Court directs, submit supplemental documentation itemizing those reasonable-

1 expense categories. I do not request a sum certain in this Declaration; I request that the Court enter
2 monetary sanctions in an amount sufficient to deter repetition under CCP section 128.7(d)(1), or
3 in the alternative payable to me under section 128.7(d)(2) in an amount the Court determines is
4 consistent with reasonable expense reimbursement.

5 **12. FOUNDATION FOR THE REQUEST FOR JUDICIAL NOTICE.**

6 The exhibits to the contemporaneously filed Request for Judicial Notice are court records of this
7 action and serving-counsel correspondence I have personally retained. Specifically:

- 8 • **Exhibit A.** The April 27, 2026 supplemental safe-harbor letter to Porter Scott (referenced and
9 incorporated by the May 5 to 8 Safe-Harbor Notice).
- 10 • **Exhibit B.** The May 5 to 8, 2026 CCP section 128.7(c)(1) safe-harbor notice (the operative
11 paper for safe-harbor compliance in this motion).
- 12 • **Exhibit C.** The Introduction page of Defendant’s Opposition to Plaintiff’s Motion for Leave
13 to File a Second Amended Complaint, filed April 23, 2026, containing the “no such authority
14 exists” representation.
- 15 • **Exhibit D.** The May 6, 2026 Reply Declaration of Tyler J. O’Connell in support of the Special
16 Motion to Strike (paragraph 6 and Exhibit A), and, to the extent available, the duplicative-title
17 May 8, 2026 declaration of Mr. O’Connell (per the docketed reply declaration filed May 6,
18 2026 and second declaration filed on or about May 8, 2026; verify Transaction IDs against
19 the clerk register-of-actions).

20 I authenticate Exhibit A and Exhibit B as true and correct copies of correspondence I personally
21 caused to be served. Exhibits C and D are court records of this action within the meaning of
22 Evidence Code section 452, subdivision (d), and I have attached the copies I personally retained
23 from the e-service stipulation inbox.

24 **13. NO THREAT OUTSIDE PERMITTED ADVOCACY.**

25 I do not, by this Declaration or by the motion it supports, intend any threat exceeding permitted ad-
26 vocacy under California Rule of Professional Conduct 3.4 or California Business and Professions
27 Code section 6068(b). I seek only the relief permitted by Code of Civil Procedure section 128.7,
28 by the California Rules of Professional Conduct, and by the Court’s inherent authority.

1 **14. RESERVATION OF RIGHTS.**

2 I expressly reserve all rights to seek any further relief permitted by law, including but not lim-
3 ited to motions under Code of Civil Procedure section 128.5, applications for fees under Code of
4 Civil Procedure section 425.16(c)(1) where applicable, and the remedies referenced in my prior
5 safe-harbor correspondence. Nothing in this Declaration is a waiver of any claim, defense, the-
6 ory, allegation, or measure of damages stated in my operative pleadings or proposed amended
7 pleadings.

8 _____
9 I declare under penalty of perjury under the laws of the State of California that the foregoing is
10 true and correct.

11 Executed on May 21, 2026, at Rohnert Park, California.

By: _____ Dylan Franciscus Rosario, Plaintiff in Pro Per 7624 Melody Drive
Rohnert Park, CA 94928 Tel: 650.488.7510 E: soltrinox@gmail.com

Dated: May 25, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

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DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

Plaintiff declares under penalty of perjury under the laws of the State of California (Code Civ. Proc., § 2015.5) that the statements below are true and correct for this declaration.

#	Authority	Specific requirement	This filing's compliance	Evidence
1	CCP 2015.5	Verification under penalty of perjury	Declaration signed and dated	Signature block
2	CRC 3.1113	Declaration in support of motion	Facts stated on personal knowledge	Declaration body
3	Evid. Code 702	Personal knowledge foundation where applicable	"I declare" opening	Opening paragraphs